

CONSUMER TERMS OF USE

Before you use this web site or mobile application ("Application"), please read these Terms of Use to which you agree by using the Application (the "Terms of Use").

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 - d. You shall abide by any additional rules or limitations regarding use of MLS Content displayed in the Application or contained in a Developer EULA;
 - e. You shall provide any assistance reasonably requested by FBS or an MLS in remedying any unauthorized use of MLS Content or the Platform;
 - f. You may not reproduce, modify, reverse engineer, disassemble or decompile any binary code, API or other materials and components used in connection with the Platform or MLS Content;
 - g. You may not remove or tamper with any security or analytics-related components associated with the Platform, Applications, MLS Content or MLS systems;
 - h. You may not rent, lease, lend, upload to or host on any website or server, sell, redistribute or sublicense any Platform service or component, or enable others to do so;
 - i. You may not take any action related to the Platform that interferes with, damages, accesses or uses in any unauthorized manner the hardware, software, networks, technologies or other properties or services of FBS or of any end user or other third party;

- j. You may not use the Platform or MLS Content in any manner or for any purpose that violates any law or regulation, any right of any person, including but not limited to intellectual property rights, rights of privacy, or rights of personality; and,
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- a. Provide updates to the Applications from time to time for feature enhancement, security or other purposes;
 - b. Terminate your access to any Application; and
 - c. Rate limit your access to the Application or MLS Content at any time and in FBS's sole discretion.
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6. **Mobile/Web Access.** You are solely responsible for any mobile data fees and other third-party charges you may incur in connection with your access, download and use of the Platform or Applications.
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10. **General Terms.**

- a. **Territory.** The Platform and MLS Content are intended for and made available to customers in the United States.
- b. **Termination.** These Terms of Use shall automatically terminate without notice if you breach any terms of these Terms of Use. In the event of such termination, you shall cease all use of the Platform and MLS Content, and we may immediately revoke your access to the Platform and MLS Content without notice to you and without obligation to refund any purchases. FBS shall further have the right to terminate these Terms of Use without notice at any time.
- c. **Governing Law.** These Terms of Use shall be governed by the laws of the State of North Dakota, without reference to its rules governing choice of law or venue or the U.N. Convention on Contracts for the International Sale of Goods. You hereby irrevocably consent to and waive any objection to the exclusive jurisdiction and venue of the federal and state courts located at Cass County, North Dakota for any and all disputes, claims and actions. Notwithstanding the foregoing, you agree that (i) FBS may apply for injunctive remedies (or an equivalent type of urgent legal relief) in any jurisdiction, and (ii) MLSs providing MLS Content may enforce any rights to MLS Content or that are otherwise available to them under Section 13 in any jurisdiction and under any governing law.
- d. **Amendments.** FBS may amend any of these Terms of Use at its sole discretion by posting the revised terms on the Platform or by notice to you. Your continued use of the Platform or MLS Content after the effective date of the revised Agreement terms shall constitute your acceptance of the terms.

- e. **No Waiver.** A failure by FBS or MLS to insist upon or enforce your strict compliance with these Terms of Use shall not constitute a waiver of any of FBS's or MLS's rights.
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- g. **Government Users.** If you are a U.S. Government end user, the Applications and MLS Content are licensed to you as "Commercial Items" as that term is defined in the U.S. Code of Federal Regulations (see 48 C.F.R. § 2.101), and the rights FBS grants to you for the Platform are the same as the rights customarily granted to others under these Terms of Use.

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